

MASTER SERVICES AGREEMENT

between

Fairmont Retail Inc.

("Client")

and

Meridian Global Technologies Inc.

("Supplier")

Agreement Reference	MSA-061-2022
Effective Date	23 November 2022
Initial Term	2 year(s)
Expiry Date	23 November 2024
Governing Law	the State of Georgia, United States
Client Jurisdiction	Georgia, USA
Industry Vertical	Retail
Number of Statements of Work	2
Total Contract Value	\$3,729,000

This document is confidential and is issued subject to the terms set out herein. Unauthorised distribution is prohibited.

THIS MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is made and entered into on 23 November 2022 (the "Effective Date"),

BY AND BETWEEN:

(1) Fairmont Retail Inc., a company incorporated under the laws of the State of Georgia, United States (GE Corp. Reg. 1473430), having its registered office at 44074 Mallory Gateway, Atlanta, GA (the "Client"); and

(2) Meridian Global Technologies Inc., a company incorporated in Delaware, USA (Delaware Reg. No. 5541203), having its principal place of business at 1200 Innovation Parkway, Suite 400, Wilmington, DE 19801, USA (the "Supplier").

The Client and the Supplier are together referred to as the "Parties" and each individually as a "Party".

RECITALS

A. The Client wishes to procure certain information technology, software development and managed services in connection with its retail operations.

B. The Supplier is engaged in the business of providing information technology outsourcing, software engineering and related professional services and has agreed to provide such services to the Client on the terms of this Agreement.

C. This Agreement sets out the framework terms under which the Supplier shall provide services to the Client pursuant to one or more Statements of Work executed hereunder.

1. DEFINITIONS AND INTERPRETATION

"Statement of Work" or "SOW" means a document executed by the Parties under this Agreement describing specific services, deliverables, timelines and charges. Each SOW forms part of and is governed by this Agreement.

"Charges" means the fees payable by the Client to the Supplier as set out in the applicable SOW. "Deliverables" means the outputs to be delivered by the Supplier as specified in a SOW. In the event of conflict between this Agreement and a SOW, this Agreement shall prevail except where the SOW expressly states otherwise.

2. TERM AND RENEWAL

This Agreement shall commence on the Effective Date and, unless terminated earlier in accordance with its terms, shall continue for an initial term of 2 year(s), expiring on 23 November 2024 (the "Initial Term").

Upon expiry of the Initial Term, this Agreement shall automatically renew for successive periods of 1 year(s) unless either Party gives written notice of non-renewal at least 60 days prior to the end of the then-current term.

3. SCOPE OF SERVICES

The Supplier shall provide the services described in each SOW (the "Services"). As at the Effective Date, 2 Statement(s) of Work has/have been agreed, as listed in Schedule 1. Additional SOWs may be executed from time to time and shall be governed by this Agreement.

4. CHARGES, INVOICING AND PAYMENT

The Client shall pay the Charges set out in each SOW. Unless otherwise stated in a SOW, the Supplier shall invoice monthly in arrears, and the Client shall pay undisputed invoices within 60 days of the date of a valid invoice (Net 60).

Late payment of undisputed amounts shall accrue interest at 1.5% per month. All Charges are exclusive of applicable taxes, which shall be borne by the Client.

The aggregate value of the Statements of Work in force as at the Effective Date is \$3,729,000.

5. CONFIDENTIALITY

Each Party shall keep confidential all Confidential Information of the other Party and shall not use or disclose it except as necessary to perform this Agreement. These obligations shall survive termination for a period of 3 years.

6. INTELLECTUAL PROPERTY

The Supplier retains ownership of all software, frameworks and accelerators and grants the Client a non-exclusive, non-transferable licence for internal use for the term of the applicable Statement of Work.

7. DATA PROTECTION

Each Party shall comply with all applicable data-protection laws, including applicable U.S. state privacy laws. Where the Supplier processes personal data on behalf of the Client, it shall do so only on documented instructions and shall implement appropriate technical and organisational measures. A separate Data Processing Addendum shall apply where required by law.

8. WARRANTIES

The Supplier warrants that the Services shall be performed with reasonable skill and care and in accordance with good industry practice, and that Deliverables shall materially conform to the specifications set out in the applicable SOW for a period of ninety (90) days following acceptance.

9. INDEMNIFICATION

[Mutual IP indemnity] Each party shall indemnify the other against third-party claims arising from infringement of intellectual property rights, subject to the limitations of liability set out herein.

10. LIMITATION OF LIABILITY

Subject to the exclusions below, the total aggregate liability of either Party arising out of or in connection with this Agreement and any SOW shall not exceed two hundred percent (200%) of the total Charges payable under the applicable Statement of Work (the "Liability Cap"; cap basis: 200% of SOW value).

Neither Party shall be liable for indirect, incidental, special or consequential losses, or for loss of profits, revenue or anticipated savings. The Liability Cap shall not apply to liability for death or personal injury caused by negligence, fraud, breach of confidentiality, or a Party's indemnification obligations.

11. INSURANCE

The Supplier shall maintain, at its own cost, professional indemnity and cyber-liability insurance with a minimum coverage of \$10,000,000 per claim, and shall provide evidence of such coverage upon reasonable request.

12. SERVICE LEVELS AND SERVICE CREDITS

Service levels applicable to each engagement are set out in the relevant SOW. Where the Supplier fails to meet an agreed service level, the Client shall be entitled to service credits + earn-back as set out in the SOW. The aggregate service credits / liquidated damages payable in any calendar month shall not exceed 25% of the Charges payable for that month for the affected SOW. Service credits are the Client's sole financial remedy for service-level failures, save for the Client's termination rights.

13. TERMINATION

Either Party may terminate this Agreement or any SOW for convenience by giving the other Party not less than 30 days' prior written notice.

Either Party may terminate immediately on written notice if the other Party commits a material breach which is not remedied within thirty (30) days of notice, or becomes insolvent. On termination, the Client shall pay for Services properly performed up to the effective date of termination.

14. NON-SOLICITATION

During the term of this Agreement and for 12 months thereafter, neither Party shall knowingly solicit for employment any personnel of the other Party who was directly involved in the performance of the Services, save for general public advertising.

15. FORCE MAJEURE

Neither Party shall be liable for any failure or delay in performance (other than payment obligations) to the extent caused by events beyond its reasonable control, provided it takes reasonable steps to mitigate the effects.

16. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Georgia, United States. The Parties shall attempt in good faith to resolve any dispute by negotiation. Failing resolution, disputes shall be referred to arbitration under the American Arbitration Association (AAA), and the courts of the state and federal courts located in Fulton County, Georgia shall have jurisdiction in respect of any matter not subject to arbitration.

17. NOTICES AND KEY CONTACTS

All notices under this Agreement shall be in writing and sent to the following contacts:

Client Contract Owner	Angela Roberts, Chief Digital Officer <angela.roberts@fairmontcorp.com>
Client Registered Office	44074 Mallory Gateway, Atlanta, GA
Supplier Engagement Lead	Arjun Mehta, Global Delivery Director <a.mehta@meridianglobal.com>
Supplier Office	1200 Innovation Parkway, Suite 400, Wilmington, DE 19801, USA

18. ENTIRE AGREEMENT

This Agreement, together with its Schedules and all SOWs executed hereunder, constitutes the entire agreement between the Parties and supersedes all prior discussions and agreements relating to its subject matter.

IN WITNESS WHEREOF, the parties have executed this Agreement by their duly authorised representatives as of the Effective Date.

**For and on behalf of
Fairmont Retail Inc.**

Name: David Vega
Title: Chief Information Officer
Email: david.vega@fairmontcorp.com
Date: _____

**For and on behalf of
Meridian Global Technologies Inc.**

Name: Elena Kowalski
Title: VP, Global Contracts
Email: e.kowalski@meridianglobal.com
Date: _____

SCHEDULE 1 — STATEMENTS OF WORK

The following Statement(s) of Work are in force under this Agreement (MSA-061-2022) as at the Effective Date. Each SOW is incorporated into and governed by this Agreement.

SOW Ref	Service	Start	End	Billing	Value
SOW-061-01	E-commerce platform replatforming	14 August 2023	14 August 2026	Milestone-based	\$735,000
SOW-061-02	Omnichannel order management	12 January 2023	12 July 2024	Milestone-based	\$2,994,000

Total Contract Value: \$3,729,000